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In Lebanon, Freedom of Expression is Crime

Since we began studying journalism at university, we've heard endless lectures about journalists' rights — freedom of expression, access to information, the right to work without discrimination, and judicial protection. On paper, these rights sound empowering. But in reality? Welcome to Lebanon, where everything is different.

Every Lebanese journalist has the fear of publishing freely without worrying about the consequences. In which, sharing a single post, article, or even sarcastic comment could lead to interrogation or a lawsuit. However, Lebanon is considered one of the best Arab countries in the field of journalists' rights.

According to article 13 of the Lebanese constitution, “the freedom to express one's opinion orally or in writing, the freedom of the press, the freedom of assembly, and the freedom of association are guaranteed within the limits established by law.” Journalists are allowed freedom of expression, but they are not allowed to insult a high racial official or a foreign head of state.

Take the case of Mohammad Taleb, director of the "Lebanese" a news website, that has criticized the first lady Neaamat Aoun for ignoring the struggles of southern women and the lady victims of pager explosions. His tone was considered sarcastic. For that, he was summoned, interrogated for an hour, detained for 12 more at the Cybercrimes Bureau, and forced to sign a pledge never to criticize the First Lady again.

What happened to his right to express an opinion? The freedom of expression according to article 385, defamation happens when you say something about someone — even as a question or just suggesting doubt — that hurts their honor or dignity. Any insulting word, harsh expression, or even a drawing that shows disrespect counts as defamation, even if you're not directly accusing them of doing something specific.

What happened to Article 29, which clearly says that any case involving journalists should go before the Publications Court, not the Cybercrimes Bureau?

The same article of law was ignored again in the case of the journalist Ali Berro, who refused to appear for questioning three times after publishing comments linked to Prime Minister Nawaf Salam. Instead of referring the case to the proper court, the Public Prosecutor issued a search warrant. When laws designed to protect journalists are broken by the very institutions meant to uphold them, press freedom stops being a right and becomes a privilege granted by power.

During the commemoration, from the Raouche Rock, Ali Berro posted a video saying: “Nawaf, the hajj (Wafic Safa, Hezbollah’s liaison and coordination head) sends you his regards and says: We will light it up, Nawaf, and we’ll put you out.”

Commenting on the illuminated rock, Berro adds: “And there it is, Nawaf, we lit it up, despite you and despite your master Yazid.”

Thus, he was considered insulting Salam, but have you ever thought what does insulting means? In the Lebanese context, the word “insult” doesn’t have one fixed meaning — it can change depending on the

situation. Sometimes it means a lack of respect, and other times it means verbal or behavioral offense.

What does defamation mean? Since ever “defamation” is when you present false info as true. The word defamation in the Lebanese case is also different and have a lot of meanings.

It occurred once more with Joelle Abel Aal, a journalist from the feminist platform “Sharika Walaken”, that was summoned along with her colleague Hayat Mirshad after artist Fares Karam filed a defamation suit against them. That's came after Abdel Aal's report about Kafala system and mentioned a migrant worker who hadn't been paid by Karam, and after questioning and giving him the right to defense himself he refused.

Instead of protecting her right to report on human rights violations, authorities treated her like a criminal. To make matters worse, only Mirshad was exempted from interrogation because she held a press card. Since when does a piece of plastic decide who deserves legal protection? Isn't this considered discrimination between journalists who have press cards and others that don't have it?

These stories aren't the only ones. Lebanon's leaders keep praising freedom of speech in front of cameras, while journalists are being dragged into interrogation rooms behind closed doors.

Some people argue that these journalists should be held accountable because no one is above the law. And that's true; freedom of expression doesn't mean freedom from responsibility. But Lebanon's laws already protect journalists through the Publications Court, not the Cybercrimes Bureau. So, the issue isn't about punishment; it's about applying the law correctly and respecting press immunity.

I'm writing this now because as journalism students, we're being taught ideals that the real-world refuses to respect. Our professors tell us that journalism is the "voice of the voiceless." But how can we raise our voices when the system punishes those who dare to speak?